

United States Court of Appeals for the Fourth Circuit

Order Submitting Appeal on the Briefs

Asterglen Freight Software, Inc., Appellant, v. Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC, Appellees.

No. SYN-CA4-26-CV-4102 Appellate ECF No. 8 — Filed June 3, 2026

The Court has reviewed the opening brief, response brief, notice that no reply will be filed, certified district record, and initial appellate papers. The principal threshold question is whether the February 4, 2026 order and separate partial judgment satisfy Federal Rule of Civil Procedure 54(b) despite the absence of an express determination that there is no just reason for delay. The written submissions identify the operative language, pending claims, and authorities relevant to that question.

A unanimous panel concludes under Federal Rule of Appellate Procedure 34(a)(2) that oral argument would not significantly aid the decisional process. The jurisdictional issue is authoritatively framed by Rule 54(b), 28 U.S.C. § 1291, and the cited decisions. The briefs and record adequately present the facts and legal contentions. The appeal is therefore SUBMITTED ON THE BRIEFS as of June 3, 2026.

This order does not decide appellate jurisdiction, indicate a view of the merits, or alter the district court's continued authority over unresolved matters. Submission means only that the case is ready for decision on the existing written record. No argument date will be set unless the panel later withdraws this order.

Supplemental status direction

The certified district docket reports that Count II against Meridian Silt Holdings, LLC and Copper Kestrel Logistics, LLC's amended counterclaim against Asterglen Freight Software, Inc. remained pending through March 20, 2026. Because that status is material to the Rule 54(b) inquiry, appellant shall file by June 5, 2026 a concise certification stating whether either claim has since been adjudicated, dismissed, settled, or included in a judgment resolving the entire action.

The certification shall identify any relevant district entry by number and date. If no change has occurred, it shall say so directly. It may not introduce new evidence concerning the contract merits, supplement the parties' briefing, or argue the jurisdictional question. Appellees may notify the Clerk promptly if they believe the certification inaccurately reports an entered district disposition.

Unless a material status change is reported, the panel will decide the appeal on the papers already submitted. The Clerk shall circulate the June 5 certification with the existing record and then mark the matter fully submitted. No response is requested absent further order. The submission date for decisional purposes remains June 3.

This direction protects the accuracy of the jurisdictional record without reopening principal briefing. It does not imply that a later district event would cure or fail to cure any defect in the February 4 papers. Those legal consequences, if presented, remain for decision. Entered at the direction of the unanimous panel on June 3, 2026.